Showing contexts for: **PWDVA** in Jyoti Abhijeet Kandage vs Abhijeet Narayan Kandage on 15 September, 2025

Context size: Small | Current | Large | Larger

> " 1. The Petitioner No.1 who is the husband seeks transfer of the pending proceedings initiated under the Protection of Women from Domestic Violence Act, 2005. As the said proceedings being summary in nature where the legislature has consciously given an outer limit, we are not inclined to allow this Transfer Petition, instead we direct the Judicial Magistrate First Class, Bhivandi, Thane, Maharashtra to dispose of **PWDVA** No.51 of 2016 within a period of eight weeks from today.

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17) I was also shown circular dated 28 April, 2023 issued by the Principal Judge of Family Court, Mumbai. For ease of reference a scanned copy of the same is reproduced hereinbelow :-

> 18) This circular makes it clear that though the parties may not be husband and wife, the proceedings between them can be KVM 1 - MCA 239 OF 2024.doc transferred to the Family Court, and they will remain parties only to proceedings in D.V. matter. Hence, in the present case, D.V. proceedings of mother-in-law and sister-in-law i.e. **PWDVA** No. 57 of 2023, should be transferred to Family Court at Kolhapur. If an application for transfer of proceeding **PWDVA** No. 27 of 2024 filed by the Applicant-Wife pending before Judicial Magistrate, First Class, Kolhapur, to Family Court at Kolhapur is preferred by either of the parties, the same can be considered in accordance with law.

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19) Miscellaneous Civil Application stands allowed in terms of prayer clause (a).

20) **PWDVA** No. 57 of 2023 filed by the Respondent Nos. 2 and 3 before the Judicial Magistrate First Class, Shirur, Pune is hereby transferred to the Family Court at

Kolhapur, District Kolhapur.

21) The Judicial Magistrate First Class, Shirur, Pune is directed to transfer the proceedings of **PWDVA** No. 57 of 2023 to the Family Court at Kolhapur, within one month.

22) All concerned to act on an authenticated copy of this Judgment.